

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS’ SECOND MOTION FOR AN ENLARGEMENT OF TIME TO FILE
EXCEPTIONS AND FOR OTHER RELIEF**

Pursuant to Rules 69, 71, 102, 228, and 230 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion to the Commission for an enlargement of the current due date for filing Exceptions to the Presiding Officer’s Initial Decision Dismissing the Complaint, which was served on March 9, 2017. Specifically, complainants request an additional sixteen (16) days from April 17, 2017 (current due date for Exceptions) for purposes of filing Exceptions and/or a Petition to Reopen the Proceedings, up to and including May 3, 2017.

RELEVANT PROCEDURAL HISTORY

On March 9, 2017, the Presiding Officer's issued the Initial Decision Dismissing the Complaint, directing that Exceptions be filed within twenty two days, to wit: on or before March 31, 2017.

On March 10, 2017, the undersigned filed a motion for an enlargement of the due date for filing Exceptions, which was granted in part on March 20, 2017 and which directed that Exceptions be filed on or before April 17, 2017.

ARGUMENT

Good Cause Exists for Enlarging the April 17, 2017 Due Date for the Filing of Exceptions

The undersigned bases the instant request for an enlargement of time for filing Exceptions upon the following reasons:

1. As explained in complainants' March 10, 2017 motion, the undersigned was outside of the continental United States for most of March for matters related to prior military service and status as a U.S. Army Veteran.
2. Upon my return to New York, a family matter arose which now requires my personal involvement for the next three weeks. To the extent necessary, I can provide the Office of the Secretary with further documentation for *in camera* review in support of the instant request.
3. As the Commission may further be aware, Passover runs from April 10, 2017 through April 18, 2017 and Easter is immediately prior to the current due date of April 17, 2017. Both of these holidays have also resulted in scheduling conflicts for the undersigned, which further require the short sixteen (16) day extension of time now requested.
4. The undersigned has conferred with counsel for respondents regarding the instant request, who has advised that respondents will review the instant application prior to taking a position regarding this request.

RELIEF REQUESTED

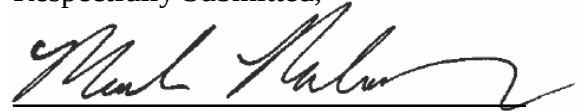
It is therefore respectfully requested that the Commission issue an Order enlarging the current due date for filing Exceptions to the Presiding Officer's Initial Decision Dismissing the Complaint. Specifically, complainants request an additional sixteen (16) days from April 17, 2017

(current due date for Exceptions) for purposes of filing Exceptions and/or a Petition to Reopen the Proceedings, up to and including May 3, 2017.

WHEREFORE, it is respectfully requested that Complainants' motion be granted in its entirety.

Dated: March 31, 2017
Brooklyn, NY

Respectfully Submitted,

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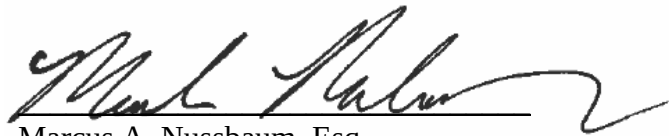
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' SECOND MOTION FOR AN ENLARGEMENT OF TIME TO FILE EXCEPTIONS AND FOR OTHER RELIEF** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

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Dated: Brooklyn, New York
March 31, 2017